



**THE POLICE COMMISSIONER
CITY OF NEW YORK**

**MEMORANDUM IN SUPPORT OF NYPD'S DEVIATION FROM
THE DISCIPLINARY SYSTEM PENALTY GUIDELINES**

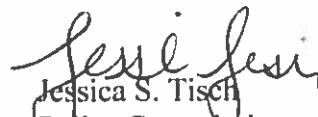
Re: Disciplinary Case No. 2023-28949 / PODS Case No. C-031559 regarding
Lieutenant Michael McDermott, Tax No. 950858

Date: April 21, 2026

This disciplinary matter was investigated by the Civilian Complaint Review Board ("CCRB") which involved an allegation that Lieutenant McDermott arrested an individual without sufficient legal authority. CCRB has determined that a downward deviation from the Disciplinary System Penalty Guidelines is warranted.

I concur with the downward deviation for the reasons articulated by CCRB in the attached correspondence.

Therefore, the Charges and Specifications in this matter will be dismissed and Lieutenant McDermott will receive Training, as negotiated by CCRB.


Jessica S. Tisch
Police Commissioner



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
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Dr. MOHAMMAD KHALID
INTERIM CHAIR

September 10, 2025

The Honorable Jessica Tisch
Police Commissioner
New York City Police
Department One Police Plaza
New York, NY 10038

VIA EMAIL

Re: CCRB v. LT Michael McDermott (CCRB #202202497, Tax #950858, DADS #2023-28949)

Commissioner Tisch:

I am writing to you regarding the plea in the above referenced case.

The CCRB offered LT Michael McDermott a disposition of Formalized Training in this matter. This is a downward deviation from the NYPD's Disciplinary Matrix. The CCRB offered this disposition for the following reasons:

1. LT McDermott agreed to take responsibility for his misconduct.
2. LT McDermott has received recognition for Excellent Police Duty 15 times, Meritorious Police Duty 2 times, and 1 Commendation.
3. Given the brief duration and totality of circumstances and the potential for training to correct/rehabilitate behavior, the CCRB believes training is the best disposition of this matter.

Respectfully submitted,
Andre D. Applewhite
Andre Applewhite
Chief Prosecutor
Civilian Complaint Review Board